



POLICE DEPARTMENT

April 26, 2022

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 201907669 regarding Police Officer Latrice McFarland, Tax No. [REDACTED]

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges/Specifications in connection with CCRB Case No. 201907669, pertaining to Police Officer McFarland. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges/Specifications against Police Officer McFarland would be detrimental to the Police Department's disciplinary process.

First, the substantiated allegation involving the use of force by Officer McFarland was already addressed with the issuance of a Schedule B Command Discipline, which was accepted by Officer McFarland on February 28, 2020, at the conclusion of a Department investigation of the underlying matter. Therefore, the allegation pertaining to the alleged false statement is the only remaining issue in this matter.

With respect to the allegation of making a false statement, the Police Commissioner reviewed the matter in its entirety and determined that the two statements made by Officer McFarland, months apart, do not reflect mutually exclusive versions of events. The second statement appears to be an effort to explain why she may have "reacted" by kicking the individual after she was kicked by him, which she had acknowledged doing in her earlier interview with Department investigators. As the subsequent explanation is not incompatible with her earlier statement to Department investigators, neither statement amounts to misconduct.

The Police Commissioner further noted that Police Officer McFarland has no other substantiated CCRB allegations and has not received any formal discipline from the Department prior to this incident.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, and based on the interests of justice, the Police Commissioner intends to retain jurisdiction over this matter and take no further disciplinary action against Police Officer McFarland in connection with this matter.

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,



Lourdes Soto

Inspector

Commanding Officer

Police Commissioner's Office